



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
LGU TIN: 000794065
Official Email Add: sbprietodiaz@gmail.com



Office of the Sangguniang Bayan

MINUTES OF THE REGULAR SESSION OF THE 12TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON SEPTEMBER 8, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA
Hon. Ryand D. Diño
Hon. Vicente B. Bayoca
Hon. Bienvenido D. Ayo, Jr.
Hon. Joseph H. Yap, Jr.
Hon. Alexander D. Destura
Hon. Jo Madel D. Domalaon
Hon. Juan D. Ebid
Hon. Lilia D. Oliveres
Hon. Antonio J. Emano, Jr.
Hon. Rene Joseph D. Domasian

Municipal Vice Mayor/ Presiding Officer
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
Sangguniang Bayan Member
LnB Pres./S. B. Member
SKMF Pres./S. B. Member

ABSENT: None

1 – CALL TO ORDER

The regular session was called to order by the regular Presiding Officer, Hon. Avon Domalaon at 8:30 in the morning.

2 – OPENING PRAYER

The opening prayer was led by Hon. Jo Madel Domalaon.

3 – ROLL CALL

The Secretary called the roll and reported back to the Chair that there is a hundred percent attendance. Quorum therefore was established.

4 – READING AND APPROVAL OF THE PREVIOUS MINUTES

The verbatim reading of the minutes of the September 2, 2025 regular session was dispensed with upon motion of Hon. Antonio Emano, Jr., duly seconded by Hon. Juan Ebid. The Chair asked the august body for any corrections or amendments to the said minutes. Having no corrections, and upon motion of Hon. Antonio Emano, Jr., duly seconded by Hon. Juan Ebid, the minutes of the September 2, 2025 regular session was adopted and approved unanimously.

5 – APPROVAL OF THE AGENDA

The Chair asked if there are additional inclusions to the Calendar of Business. Hereunder are the proposed inclusions, to wit;

- 5.1 by Hon. Jo Madel Domalaon: Benchmarking in Siargao
- 5.2 by Hon. Juan Ebid: PCL activities finalization; Gogon – San Rafael road condition
- 5.3 by Hon. Joseph Yap, Jr: for 2nd Reading – Gogon Ordinance No. 02-2026
- 5.4 by the Chair: students' educational assistance; resolutions from Mayor Domasian
- 5.5 Accreditation papers of PGUSORTSCO
- 5.6 Endorsement from the Mayor: Deed of Donation with Smart Communications, Inc.

Having no other inclusions, and upon motion of Hon. Alexander Destura, duly seconded by Hon. Juan Ebid, the agenda for the September 8, 2025 was adopted and approved unanimously.

6 – REFERENCE OF BUSINESS

- 6.1 Proposed Ordinances - none
- 6.2 Proposed Resolutions:
 - 6.2.1 Draft Resolution No. 162-2025: A RESOLUTION RESPECTFULLY REQUESTING THE DEPARTMENT OF AGRICULTURE – PHILIPPINE CENTER FOR POSTHARVEST DEVELOPMENT AND MECHANIZATION (DA-PhilMech), SCIENCE CITY OF MUNOZ, NUEVA ECIIJA THROUGH ITS DIRECTOR, MR. DIONISIO G. ALVINDIA, PhD, TO DONATE FARM EQUIPMENT TO THE MUNICIPALITY OF PRIETO DIAZ, SOROSOGON, BICOL REGION V. Introduced by Hon. Avon D. Domalaon and Hon. Juan D. Ebid

Hon. Juan Ebid read the text of the said resolution, to wit;

WHEREAS, the following equipment / machineries are the ones much needed by our farmers:

- 1. 2 units HARVESTER
- 2. 2 units TRACTOR
- 3. 1 RECIRCULATING DRYER

WHEREAS, the Local Government Unit of Prieto Diaz is cognizant that the PhilMech has been implementing this Rice Competitiveness Enhancement Fund (RCEF) program which has been helping the farmers and the farmer-associations avail of modern farm machineries and help them become competitive with other neighboring countries;

WHEREAS, rice farming is one of the major sources of livelihood for nearly a thousand farmers in this 4th class municipality, nevertheless, rice yield potential is not maximized due to lack of modern farming technologies;

WHEREAS, this lack of farm machineries results to high labor and production cost;

WHEREAS, the municipal government owns a lot which may be utilized for the recirculating dryer;

WHEREAS, the Local Government Unit pins its hope on your office for the realization of this request;

WHEREAS, on motion of Hon. Antonio Emano, Jr., duly seconded by Hon. Alexander Destura;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to respectfully request the Department of Agriculture - Philippine Center for Postharvest Development and Mechanization (DA – PhilMech), Science City of Muñoz, Nueva Ecija, through its Director, Mr. Dionisio G. Alvindia, PhD, to donate farm equipment to the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Director, Mr. Dionisio G. Alvindia, PhD, Philippine Center for Postharvest Development and Mechanization (DA – PhilMech), Science City of Muñoz, Nueva Ecija; copy furnished Ms. Melanie Sol, Municipal Agriculturist; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

6.2.2 Draft Resolution No. 163-2025: A RESOLUTION ADOPTING THE RULES ON THE CONDUCT OF ADMINISTRATIVE INVESTIGATION BY THE SANGGUNIAN BAYAN OF PRIETO DIAZ, SORSOGON. Introduced by Hon. Joseph H. Yap, Jr.

The author explained that the said resolution is similar to those rules adopted by the previous Sanggunian. On motion of Hon. Alexander Destura, duly seconded by Hon. Juan Ebid, the said resolution was adopted and approved unanimously.

6.3 Petitions/Requests - none

6.4 Other Communications:

6.4.1 Letter from Dra. Jenifer T. Bernaldez, M.D., Rural Health Officer re: Disaster Risk Reduction and Management in Health Plan (DRRM-H Plan) 3rd Edition

A resolution was enacted, introduced by the council, entitled: A RESOLUTION ADOPTING THE DISASTER RISK REDUCTION AND MANAGEMENT IN HEALTH (DRRM-H) PLAN 3RD EDITION OF THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, endorsed by the Municipal Health Office through Dr. Jenifer Bernaldez to this august body was the said DRRM-H Plan 3rd Edition;

WHEREAS, the main goals of the said plan are: (1) to guarantee uninterrupted health services delivery during emergencies and disasters; (2) to avert preventable morbidities, mortalities and other health effects secondary to emergencies and disasters; (3) ensure that no outbreaks occur secondary to emergencies and disasters;

WHEREAS, the strategies for each thematic areas (1) Prevention and Mitigation Plan (2) Preparedness Plan (3) Response Plan (4) Recovery and Rehabilitation Plan, shall focus on 4 health squad cluster namely:

(1) Medical and Public Health to include Minimum Initial Service Package- Sexual and Reproductive Health (MISP-SRH);

- (2) Water, Sanitation, and Hygiene (WASH);
- (3) Nutrition; and
- (4) Mental Health and Psychosocial Support (MHPSS);

WHEREAS, the Sangguniang Bayan understands that the said DRRM-H plan is developed by the Municipal Health Office and will be tested annually, updated and disseminated regularly;

WHEREAS, on motion of Hon. Lilia Oliveres, duly seconded by Hon. Juan Ebid;

NOW, THEREFORE, be it as it is;

APPROVED UNANIMOUSLY.

The said resolution was docketed as Resolution No. 164-2025.

- 6.4.2 Endorsement from Hon. Romeo D. Domasian, Municipal Mayor dated August 29, 2025 re: Local Health Board (LHB) Resolution Nos. 2025-10; 2025-11; 2025-12; 2025-13; 2025-14 and 2025-15, respectively

Taken up later

- 6.4.4 Letter from Mr. Godfrey D. Diño dated August 30, 2025 re: attendance to session of GAS - Grade 12 students of PDNHS for the subject Politics and Governance

The Chair stated that the said would be on Monday, September 15, 2025

- 6.4.5 Letter from Ms. Mary Jane D. Detablan dated August 17, 2025: complaint against Mr. Joel Dogelio, Market Administrator-designate

Referred to the Committee on Market and Slaughterhouse

- 6.4.6 Requirement of the JNC Fuel Station in San Fernando, this municipality

In this connection, a resolution was enacted by the council entitled: A RESOLUTION INTERPOSING NO OBJECTION TO THE APPLICATION OF MR. JEROME D. DIAZ FOR A GASOLINE STATION IN BRGY. SAN FERNANDO, PRIETO DIAZ, SORSOGON

WHEREAS, this honorable body was in receipt of the following:

- (1) Letter of intent by Jerome D. Deuna for his application of a gasoline station in Brgy. San Fernando, Prieto Diaz, Sorsogon
- (2) Resolution No. 01-2025 of Brgy. San Fernando dated January 4, 2025 entitled: Interposing No objection for the Application of Mr. Jerome D. Deuna of Purok 2, San Fernando, Prieto Diaz, Sorsogon, Business Owner / Manager for the Construction of JNC' Fuel Station in Barangay San Fernando, Prieto Diaz, Sorsogon
- (3) Notarized Joint Affidavit of Non-Objection of Mr. Brian F. Diaz, Jocelyn D. Ermino, Edna Padolina and Luis Lee Espeña, Jr. dated June 3, 2025
- (4) Photocopy of the Certificate of Business Name Registration from the DTI (valid from January 10, 2025 to January 10, 2030)
- (5) Resolution No. 01 s. 2025 of the Local Zoning Board of Adjustment and Appeals entitled: "A Resolution Granting Exception to JNC Gasoline Station to Establish A Gasoline Station in an Agricultural Zone in Barangay San Fernando, Prieto Diaz, Sorsogon" dated June 18, 2025
- (6) Locational Clearance (For Construction) issued by the MPDO dated August 18, 2025;
- (7) Building Permit from the Building Official, Engr. Exequiel Destura issued on August 20, 2025

(8) Fire Safety Evaluation Clearance from the BFP dated August 15, 2025

WHEREAS, the Sangguniang Bayan sees that the said retailing of liquid fuels business shall primarily protect the consuming public from fire, health and environmental risks;

WHEREAS, seeing the benefits the said business would bring to the municipality, the Sangguniang Bayan therefore interposes no objection to the application, subject to compliance to existing municipal ordinances, DOE, DENR, BFP, BIR regulations and other pertinent rules;

WHEREAS, this body is cognizant that the such retailing of liquid fuels business is governed by, among others, DOE Department Circular No., 2017-11-0011 dated November 22, 2017, which the council believes the business applicant shall comply with;

WHEREAS, on motion of Hon. Antonio Emano, Jr., duly seconded by Hon. Alexander Destura and Hon. Juan Ebid;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to interpose no objection to the application of Mr. Jerome D. Deuna for a gasoline station in Brgy. San Fernando, Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Mr. Jerome D. Deuna, San Fernando, Prieto Diaz, Sorsogon; copy furnished Hon. Romeo D. Domasian, Municipal Mayor; Ms. Gemma Ferrer, Municipal Treasurer; Mr. Roderick Domasig, MPDC/Zoning Administrator; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

The said resolution was docketed as Resolution No. 165-2025.

6.4.7 Barangay Tupaz Tax Ordinance No. 2025-02: Local Tax Code of Barangay Tupaz, Prieto Diaz, Sorsogon

Referred to the Committee on Ways and Means and Committee on Rules

6.4.8 Administrative Requirements of Carayat Seaweed Farmers Association (CFSA) for Accreditation

Referred to the Committee on Trade & Industry, Cooperatives, Livelihood

6.4.9 Administrative Requirements of Good Neighbors International Philippine Branch, Inc. for Accreditation

Referred to the Committee on Trade & Industry, Cooperatives, Livelihood

6.4.10 Administrative Requirements of Lingap Para Sa Kalusugan Ng Sambayanan (LIKAS), Inc. for Accreditation

Referred to the Committee on Trade & Industry, Cooperatives, Livelihood

7 – COMMITTEE REPORT - NONE

8 – CALENDAR OF BUSINESS

- 8.1 Unfinished Business - none
8.2 Business for the Day - none
8.3 Business for 2nd Reading:
8.3.1 Ordinance No. 2025-10: AN ORDINANCE PROVIDING THE AMOUNT OF ONE HUNDRED THOUSAND PESOS (P 100,000. 00) EVERY YEAR INTENDED FOR THE PURCHASE OF BIRTHDAY CAKE IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON. Introduced by Hon. Alexander D. Destura

At this juncture, Hon. Alexander Destura explained that the said ordinance is for the benefit of all the senior citizens in the municipality, and that it is up to the body to decide as a collegial body. He continued that if the barangay, specifically, barangay Gogon can allocate 1% of its NTA for senior citizens, more so, the MLGU. He added that in their barangay, he was able to receive groceries intended for all elderly in the barangay. He continued that during the committee hearing, Mr. Carmelo Donina, OSCA Head was favorable to the said program.

On the other hand, Hon. Juan Ebid expressed his disagreement to the “cake” per se since the senior citizens are actually doing away with sweets, considering their health. He argued that the funds are better be utilized to augment the funds for maintenance medicines as requested by Dr. Jenifer Bernaldez. He calculated that if the P 100,000.00 annual budget is to be divided among the more or less 3000 senior citizens (registered and unregistered), each elderly would only be entitled to worth P 33.00 cake. For his part, Hon. Alexander Destura stated that if Councilor Ebid believes that funds are better used for medicines, he should then be passing an ordinance for the said purpose. Nevertheless, he then thanked the committees which exerted efforts for his ordinance, and reiterated that the OSCA Head was even agreeable to it. He continued that given the opposition from Councilor Ebid since the previous session, he therefore moved to withdraw the said ordinance. The Chair then stated that if so, he is accepting the said withdrawal.

- 8.3.2 Ordinance No. 2025-11: AN ORDINANCE PROVIDING GUIDELINES AND POLICIES ON ASSISTANCE TO INDIVIDUALS IN CRISIS SITUATION (AICS) IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON. Introduced by Hon. Alexander D. Destura

At this juncture, the author explained that his ordinance primarily aims to address the several complaints regarding the release of AICS fund to people in need, more particularly, the lengthy process where the intended medical assistance is already for “burial assistance” when released. He added that the ordinance will also authorize the Municipal Treasurer to have Petty Cash Fund for the immediate release of AICS. He added that there seems to be a need to augment funds for AICS since the allocation of P 500,000 in the annual budget is already exhausted as early as June. This time, the Chair looked for the items or kinds of assistance included in the AICS program, which states only medical, burial and 7K program (Simula’t Katapusan). He informed Councilor Destura that there is already an existing ordinance for the latter approved by the previous Sanggunian. This time, the Chair declared a short recess. The session resumed at 9:35

in the morning. The Chair continued that the existing ordinance on maternal and death assistance, Ordinance No. 2022-24 is already in place. Hon. Alexander Destura then stated that he is willing to have that provision for maternal and death assistance excluded since it is already in Ordinance No. 2022-24.

The Chair further suggested stating in the ordinance the program coverage or the financial assistance that may be provided by the MLGU (such as medical, funeral, transportation, food, etc.) Likewise, Councilor Yap suggested stating the exact amount to be granted as well for every financial assistance listed. The author stated that the amount to be released is the discretion of the Municipal Mayor, as practiced. Hon. Alexander Destura added that the educational assistance may also be added, however the Chair informed him that there is already a separate ordinance for educational assistance, the reason the MLGU is able to grant cash assistance to the qualified students every end of the year.

Likewise, Councilor Yap suggested adding a section authoring the Municipal Treasurer to set up Petty Cash Fund for the said purpose, pursuant to COA guidelines, and the author was amenable to all the suggestions. The Chair ruled that the deliberation of the said ordinance be continued on the next regular session, with all the proposed amendments.

At this point, rules were suspended and Chair then acknowledged the presence of Dr. Jenifer Bernaldez, MHO, who has been invited by the body to clarify the endorsed resolutions of the Local Health Board (LHB), to wit;

- (1) LHB Resolution No. 2025-10 entitled "A Resolution Institutionalizing the Hypertension and Diabetes Club and Health Wellness Groups, collectively known as "Barangay Bantay Alta Club"

Dr. Bernaldez informed the body that every year, the LGU Scorecard is being assessed by the DOH particularly on the functionality of the Local Health Board, and one of which criteria is whether the board's actions have been forwarded to the Sangguniang Bayan quarterly, thus, the transmittal to the SB. As of LHB Resolution No. 2025-10, she explained that the said club/group is for the high blood and diabetes patients to be classified and their symptoms be controlled. The Chair stated that a Mayor's Executive Order may be suffice for the said matter.

- (2) LHB Resolution No. 2025-11 entitled "A Resolution Designating the Barangay Health Workers of Municipality of Prieto Diaz as Barangay Level Health Education and Promotion Officers (HEPOs) for Implementation of Health Promoting Policies, Programs, and Activities in the Community, providing Governance Structure, and Appropriating Resources Therefor";

Similarly, an Executive Order from the Mayor is suffice, stated by the Chair.

- (3) LHB Resolution No. 2025-12 entitled "A Resolution Approving the Establishment of an Animal Bite Treatment Center under the Municipal Health Office";

On the other hand, the Chair stated that an ordinance for the said center is already proposed by Hon. Lilia Oliveres.

- (4) LHB Resolution No. 2025-13 entitled "A Resolution Creating the Health Promotion Committee (HPC) for the Governance and Implementation of Health Promotion Policies, Programs, and Activities in the Municipal-Wide Health System Pursuant to DOH Administrative Order No. 2020-0042";

Just the same, an Executive Order from the Mayor is suffice, stated by the Chair.

- (5) LHB Resolution No. 2025-14 entitled "A Resolution Approving and Institutionalizing the Conduct of Weekly Zumba Session every Thursday from 4:00 to 5:00 PM in the Municipality of Prieto Diaz";

Similarly, an Executive Order from the Mayor is suffice, stated by the Chair.

- (6) LHB Resolution No. 2025-15 entitled "A Resolution Formally Constituting the Municipality of Prieto Diaz Responsible Parenthood and Reproductive Health (RPRH) Implementation Team"

For this matter, the Chair advised the Committee on Health to draft an ordinance for the said matter. The Chair explained copies of Executive Order from the Mayor would just be furnished to the Sangguniang Bayan. He added that should the MHO need a certification that the LHB resolutions were submitted to the SB, it would be then issued by the SB office. The Chair then thanked Dr. Bernaldez for her presence.

- 8.3.3 Barangay San Isidro Ordinance No. 001, series of 2025 entitled: "Barangay Ordinance Prohibiting The Copra Buyer To Purchase Copra And Wholenut (Benook) From The Residents Of Barangay San Isidro Who Do Not Own A Coconut Land Or Not A Tenant"

Hon. Ryand Diño read the text of the said ordinance. The Chair stated that the essence of the ordinance is to prohibit the buying of coconuts from those who do not own or are not tenants of coconut land in the barangay. He continued that as per ordinance, the ones to be penalized are both the coconut buyer and the coconut seller. He then asked the pleasure of the body. Hon. Joseph Yap, Jr. asked who is authorized to implement the said ordinance. The Chair added that the body may suggest amendments. For one, the Chair continued, the ordinance cannot "prohibit" trade, but can only regulate it. Secondly, the body may suggest who and how to implement the said ordinance, making sure that the coconuts purchased are not stolen.

Likewise, the Chair added that in Section IV (1) (2) "minors" are mentioned. He added that they should be excluded in the penal provision in Section V, because minors generally are exempted from criminal liability and should undergo some intervention program.

Having no other corrections, a resolution was enacted, introduced by the council, entitled: A RESOLUTION DECLARING AS VALID BARANGAY ORDINANCE NO. 001 SERIES OF 2025 OF BARANGAY SAN ISIDRO, PRIETO DIAZ, SORSOGON, SUBJECT TO SOME AMENDMENTS.

WHEREAS, transmitted for the review of the Sangguniang Bayan is San Isidro Barangay Ordinance No. 001 Series of 2025 entitled, "An Ordinance Prohibiting The Copra

Buyer To Purchase Copra And Wholenut (Binook) From Residents Of Barangay San Isidro, Who Do Not Own A Coconut Land Or Not A Tenant"

WHEREAS, the joint committees of Rules and Good Government and Committee on Barangay Affairs, find the said ordinance to be well-intentioned as it aims to rampant stealing of coconuts in any form (whole, husked, copra, etc.);

WHEREAS, hereunder are the findings of the Sangguniang Bayan which the Sangguniang Barangay should consider, to wit;

- (1) In the Title itself. According to the procedure prescribed by law, an ordinance must conform to the following requirements (*underscoring emphasis*): ". . . .
(4) must not prohibit but may regulate trade. . . ." Inasmuch as coconut buying is a trade or business which anyone may engage in, therefore the barangay ordinance should regulate, and not prohibit it;
- (2) In the process of regulation a business, the barangay may impose regulation or policies on, but not limited to: (a) registration of coconut buying business with the barangay, complying with the requirements set by the barangay (b) maintenance of record of coconut land owners, tenants, or caretakers and (c) maintenance of logbook / record of coconut sellers and daily transactions and make it available for inspection upon request; (d) monitoring and/or enforcement of the ordinance;
- (3) In Section IV Prohibited Acts. On "*picking or collecting fallen coconuts in coco farms that are not their own*" – which may qualify as stealing or theft. Theft is a criminal offense, punishable by the Revised Penal Code;
- (4) In the same section, minors are included in imposition of penalty. By law, minors generally are exempted from criminal liability and should undergo some intervention program;
- (5) In Section V Penalty Clause. Section 391 (12) of the Local Government Code of 1991 provides that the Sangguniang Barangay, shall authorize the Punong Barangay to, among others, (b) prescribe fines in amounts not exceeding one thousand pesos (P1,000.00) for violation of barangay ordinances.
- (6) In the same section, it referenced RA 11362 which is entitled: "*An Act Authorizing The Court To Require Community Service In Lieu of Imprisonment For The Penalties Of Arresto Menor And Arresto Mayor . . .*" The title of the act itself, explicitly states that, it is a court, not a barangay, that has the discretion to require community service as a penalty;

WHEREAS, the Sangguniang Bayan therefore strongly suggests that amendments be made accordingly to the subject barangay ordinance;

WHEREAS, notwithstanding the suggested amendments, this collegial body finds the said ordinance to be well within the powers of the barangay as provided for in the Local Government Code of 1991;

WHEREAS, upon motion of Hon. Juan Ebid, duly seconded by Hon. Alexander Destura;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to declare as valid Barangay Ordinance No. 001 series of 2025 of Barangay San Isidro, Prieto Diaz, Sorsogon, subject to some amendments;

FINALLY RESOLVED, to transmit this resolution to the Sangguniang Barangay of San Isidro through its Punong Barangay Joerge Deuna; copy furnished all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

The said resolution was docketed as Resolution No. 166-2025.

8.3.4 Barangay San Isidro Ordinance No. 003, series of 2025, entitled: "An Ordinance Prohibiting The Destruction Of Barangay Properties Of Barangay San Isidro And Imposing Penalties Thereof"

This time, Hon. Ryand Diño read the said ordinance, particularly Section IV Prohibited Acts. Hon. Diño stated that the said ordinance must have stemmed from the recent destruction of solar lights and even CCTV in barangay San Isidro by youngsters allegedly from barangay Calao. Hon. Lilia Oliveres, citing Section IV (d) "the conduct of arson of any kind", stated that arson is a criminal offense, and should be directly handled by proper authorities, not by the barangay. On the other hand, the Chair noticed that in Section 3 Definition of Terms, the committee should check if the words defined therein are indeed used in the ordinance, otherwise, they should be recommended to be excluded. He added that make sure not contravene any national laws.

Also, it was noticed that RA 11362 as cited in the ordinance, is purposely for the "courts" to require community service in lieu of imprisonment. The Chair then asked the pleasure of the body. Hon. Ryand Diño stated then that community service may be allowable, as imposed by the court, in accordance with the said republic act, and not by the barangay. He added that it may be recommended to the barangay to be delete RA 11362 and that of "imprisonment upon the discretion of the competent court.

Having no other corrections, a resolution was enacted, introduced by the council, entitled: A RESOLUTION DECLARING AS VALID BARANGAY ORDINANCE NO. 003 SERIES OF 2025 OF BARANGAY SAN ISIDRO, PRIETO DIAZ, SORSOGON, SUBJECT TO SOME AMENDMENTS.

WHEREAS, transmitted for the review of the Sangguniang Bayan is San Isidro Barangay Ordinance No. 003 Series of 2025 entitled: "An Ordinance Prohibiting The Destruction Of Barangay Properties Of Barangay San Isidro And Imposing Penalties Thereof"

WHEREAS, the joint committees of Rules and Good Government and Committee on Barangay Affairs, find the said ordinance to be well-meaning as it aims to safeguard

all government-owned properties, which are acquired through public funds from all forms of vandalism and negligent damage, for the benefit of the community;

WHEREAS, this august body believes that the protection and preservation of barangay properties ensures continuous delivery of basic services and promotes a sense of community ownership and responsibility;

WHEREAS, hereunder are the findings of this august body which the Sangguniang Barangay should consider, to wit;

WHEREAS, In Section III Definition of Terms. Some words like "vandalism" and "malicious mischief" are doubly entered and defined;

WHEREAS, in Section IV (d) - "the conduct of arson of any kind", is not is punishable by a barangay ordinance, but rather by the Revised Penal Code;

WHEREAS, In Section V Penalty Clause. It referenced RA 11362 which is entitled: "An Act Authorizing The Court To Require Community Service In Lieu of Imprisonment For The Penalties Of Arresto Menor And Arresto Mayor . . ." The title of the act itself, explicitly states that, it is a court, not a barangay, that has the discretion to require community service as a penalty;

WHEREAS, Section 391 (12) of the Local Government Code of 1991 provides that the Sangguniang Barangay, shall authorize the Punong Barangay to, among others, (b) prescribe fines in amounts not exceeding one thousand pesos (P1,000.00) for violation of barangay ordinances;

WHEREAS, the Sangguniang Bayan therefore strongly suggests that amendments be made accordingly to the subject barangay ordinance;

WHEREAS, notwithstanding the suggested amendments, this collegial body finds the said ordinance to be well within the powers of the barangay as provided for in the Local Government Code of 1991;

WHEREAS, on motion of Hon. Ryand Diño, duly seconded by Hon. Alexander Destura;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to declare as valid Barangay Ordinance No. 003 series of 2025 of Barangay San Isidro, Prieto Diaz, Sorsogon, subject to some amendments;

FINALLY RESOLVED, to transmit this resolution to the Sangguniang Barangay of San Isidro through its Punong Barangay Joerge Deuna; copy furnished all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

The said resolution was docketed as Resolution No. 167-2025.

8.3.5 Barangay San Isidro Ordinance No. 004, series of 2025, entitled: "An Ordinance Imposing Speed Limit In All Streets Within The Territorial Jurisdiction Of Barangay San Isidro, Prieto Diaz, Sorsogon"

Hon. Ryand Diño read the said barangay ordinance. The Chair commented that the national road should not be included in the provision, and that the allowable limit therein is not more than 60 to 80 kph. On the other hand, Hon. Alexander Destura stated that the main barangay road is actually a provincial road since it leads to another barangay, San Rafael. Moreover, the body agreed to recommend the deletion of Section 8B, and the "impoundment of motor vehicle at the PNP" in Section 8A. Hon. Joseph Yap, Jr. added that it should be stated that those are the "maximum" allowable speed limit. Having no other amendments/corrections, a resolution was enacted, introduced by the council, entitled, "A RESOLUTION DECLARING AS VALID BARANGAY ORDINANCE NO. 004 SERIES OF 2025 OF BARANGAY SAN ISIDRO, PRIETO DIAZ, SORSOGON, SUBJECT TO SOME AMENDMENTS."

On motion of Hon. Juan Ebid, duly seconded by Hon. Ryand Diño, the said resolution was adopted and approved unanimously and was docketed as Resolution No. 168-2025.

At this juncture, the body agreed to amend the committee reports adopted last session, to jibe with the said resolutions.

9 – BUSINESS FOR THIRD AND FINAL READING-

none

10 – OTHER MATTERS

10.1 by Hon. Jo Madel Domalaon: Benchmarking in Siargao

Councilor Domalaon shared her experience in the municipalities of Del Carmen and General Luna, Siargao. She added that she had the opportunity to learn from the best practices of the said municipalities in terms of sustainable tourism industry, environmental conservation and community development. She further shared that Del Carmen known for its own vast mangrove forest, with 5000 hectares, similar with Prieto Diaz with 1000 plus hectares. She continued that the Mayor himself discussed about their notable mangrove forest reforestation practice from being dynamite fishing-known municipality to a recipient of RAMSAR Wetland Conservation Award, an internal recognition. She continued that Del Carmen is also a consistent regional awardee for MMK, bested by Prieto Diaz as a national awardee in MMK 2020. She further shared that Del Carmen is practicing no-single use of plastic, no use of bottled water and no use of plastic cups or spoons. She added that the local revenue of Del Carmen reaches to P 20 to 30 million annually, largely from eco-tourism. She continued that their success can be attributed to community engagement shifting from rampant use of dynamite in fishing - transitioned significantly to eco-tourism activities. She added that its mangrove forest boasts of its 1.8 kilometers long Board Walk frequented by tourists basking in the beauty of the mangroves. She continued that General Luna, the center of Siargao practices the same environment practices, and has high influx of tourists every day largely due to their surfing site. Lastly, she expressed hope that her colleagues can visit them someday as well.

The Chair thanked her for her sharing and stated that the said benchmarking activity of LGU officials and employees is part of the MLGU's national award for MMK 2020.

10.2 by Hon. Juan Ebid: PCL activities finalization; Gogon – San Rafael road condition

10.2.1 PCL activities

Hon. Juan Ebid stated that the PCL celebration activities shall be held on September 9, 2025 in San Rafael Elementary School. He added that the L300 service vehicle shall leave at 6:30 in the morning.

10.2.3 Gogon – San Rafael road

Councilor Ebid informed the body of that part of the road along Gogon – San Rafael road where there is a huge pothole impacting vehicle safety and potentially causing damage to vehicles. The Chair then requested Councilor Yap, to relay the request of the body to the owner of Muntupar Builder, to at least pour truckload of gravel in the said pothole, and Councilor Yap replied that he would do so. Hon. Alexander Destura remarked that Muntupar Builder should indeed do so since its heavy equipment keep passing by therein, as it is the one constructing the Multi-Purpose Covered Court in barangay San Rafael.

10.3 by Hon. Joseph Yap, Jr: for 2nd Reading – Gogon Ordinance No. 02-2025; Ordinance No. 02-2025 of Barangay Gogon entitled: "An Ordinance Amending Certain Sections of Speed Limit Ordinance Of Barangay Gogon, Prieto Diaz, Sorsogon."

Hon. Joseph Yap, Jr. moved that the said ordinance be scheduled for 2nd Reading, since the committee has reported about it favorably during the August 18, 2025 regular session, however, Ms. Evie Enaje failed to have it calendared for 2nd Reading on the next regular session. The Chair stated that since it has passed the thirty-day review period, it shall be deemed approved by the Sangguniang Bayan, no need for SB resolution, and the body was amenable to it.

10.4 by the Chair: students' educational assistance; resolutions from Mayor Domasian

10.4.1 The Chair informed the body that in view of P 500,000 fund promised by Governor Edwin Hamor for educational assistance, the MSWDO has already chosen 500 students and has actually conducted orientation last Sunday. He added that for him, the MLGU fund should be merged therein so that more students would be able to receive cash assistance. After due deliberation, the body decided to see Mayor Domasian after the session for the said matter.

10.5 Accreditation papers of PGUSORTSCO

Referred to the Committee on Trade & Industry, Cooperatives, Livelihood

10.6 by the Chair: resolutions from Mayor Domasian to be introduced by the council

10.6.1 Resolution No. 169-2025: A RESOLUTION REQUESTING THE REGIONAL DIRECTOR, MR. HERBIE AGUAS, DEPARTMENT OF TOURISM REGION V, LEGAZPI CITY, TO CONSIDER THE CONSTRUCTION OF A TOURIST REST AREA AT THE TOURISM COMPOUND, BRGY. DIAMANTE, PRIETO DIAZ, SORSOGON.

WHEREAS, the municipality of Prieto Diaz is known for its lush mangrove forest, and is an awardee of national recognition and awards such as:

2021 2nd Placer, Para El Mar Best Locally-managed Marine Protected Area;
2021 Grand Winner, Para El Mar Best Mangrove Award;
2020 National Grand Winner, Malinis at Masaganang Karagatan (MMK);
2017 Gawad Bayani ng Kalikasan Awardee;
2016 Gawad Parangal at Pagkilala sa 100 Munisipyo / Lungsod (BoatR Program);

WHEREAS, because of those recognitions, tourists and visitors, both foreign and local, often visit the municipality;

WHEREAS, this local administration desires to have a REST AREA at Sabang Beach, in barangay Diamante, which offers clean restrooms, lounges, charging stations, information hubs, perhaps with souvenir shops and dining stations;

WHEREAS, this would definitely create a more comfortable, convenient, and stress-free travel experience for our visitors;

WHEREAS, this would also provide a platform for our MSMEs and local cooperatives to sell their products and services, thereby, helping reduce poverty and promoting decent work for our people;

WHEREAS, on motion of Hon. Alexander Destura, duly seconded by Hon. Jo Madel Domalaon and Hon. Juan Ebid;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to request the Regional Director, Mr. Herbie Aguas, Department Of Tourism Region V, Legazpi City, to consider the construction of a Tourist Rest Area at the Tourism Compound, Brgy. Diamante, Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Mr. Herbie Aguas, Regional Director; copy furnished all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

10.6.2 Resolution No. 170-2025: A RESOLUTION EXPRESSING HEARTFELT THANKS AND PROFOUND GRATITUDE TO HONORABLE SENATOR FRANCIS JOSEPH G. ESCUDERO FOR THE INTERFAITH CEMETERY CONSTRUCTED IN BRGY. RIZAL, PRIETO DIAZ, SORSOGON.

WHEREAS, the municipality of Prieto Diaz, Sorsogon is one of the fortunate recipients of the Interfaith Cemetery project from the Honorable Senator Chiz Escudero, implemented by the DPWH 2nd District Engineering Office;

WHEREAS, the municipality is very grateful for the said project for this would surely address the shortage of spaces for our departed loved ones;

WHEREAS, indeed, this would offer spaces to people of different faiths and can honor their deceased according to their traditions, promoting inclusivity and respect for religious diversity;

WHEREAS, on motion of Hon. Alexander Destura, duly seconded by Hon. Juan Ebid;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to express heartfelt thanks and profound gratitude to Honorable Senator Francis Joseph G. Escudero for the Interfaith Cemetery constructed in Brgy. Rizal, Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Hon. Senator Francis Joseph G. Escudero, Senate of the Philippines, GSIS Bldg., Financial Center, Diokno Blvd., Pasay City; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

10.6.3 Resolution No. 171-2025: A RESOLUTION EXPRESSING HEARTFELT THANKS AND PROFOUND GRATITUDE TO HONORABLE MANUEL "WOWO" FORTES, JR., REPRESENTATIVE, 2ND DISTRICT OF SORSOGON, FOR THE MULTI-PURPOSE COVERED COURT AT PRIETO DIAZ NATIONAL HIGH SCHOOL (PDNHS), MANINGCAY DE ORO, PRIETO DIAZ, SORSOGON

WHEREAS, Prieto Diaz National High School is one of the fortunate recipients of a Multi-Purpose Covered Court project from the Honorable Congressman Wowo Fortes;

WHEREAS, the said covered court has been utterly useful and worthwhile for the school;

WHEREAS, it is indeed versatile, a multi-purpose facility being used for sports and physical activities, school events, and gatherings - providing shelter from the elements;

WHEREAS, it also serves as a crucial emergency shelter for the community nearby;

WHEREAS, this local administration is truly grateful for the said project for the benefit of our school community;

WHEREAS, on motion of Hon. Alexander Destura, duly seconded by Hon. Jo Madel Domalaon and Hon. Juan Ebid;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to express heartfelt thanks and profound gratitude to Honorable Congressman Manuel "Wowo" Fortes, Jr. for the Multi-Purpose Covered Court at Prieto Diaz National High School (PDNHS), Maningcay De Oro, Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Honorable Manuel "Wowo" Fortes, Jr., Representative, 2nd District of Sorsogon, House of Representatives, Batasan Hills, Quezon City; copy furnished the School Principal, PDNHS, and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

10.6.4 Resolution No. 172-2025: A RESOLUTION EXPRESSING HEARTFELT THANKS AND PROFOUND GRATITUDE TO HONORABLE MANUEL "WOWO" FORTES, REPRESENTATIVE, 2ND DISTRICT OF SORSOGON, FOR THE THREE-STOREY LEGISLATIVE BUILDING AT THE MUNICIPAL COMPOUND, PERLAS, PRIETO DIAZ, SORSOGON

WHEREAS, the municipality of Prieto Diaz is a recipient of the project Legislative Building, constructed by the DPWH 2nd District Engineering Office on the early part of the year;

WHEREAS, the Sangguniang Bayan is especially grateful for the said building which would provide the council with a more convenient space for its sessions, hearings and meetings;

WHEREAS, the said building would also house the clientele, staff and especially tons of records that are continuously piling up;

WHEREAS, on motion of Hon. Alexander Destura, duly seconded by Hon. Jo Madel Domalaon and Hon. Juan Ebid;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to express heartfelt thanks and profound gratitude to Honorable Manuel "Wowo" Fortes. Jr., Representative, 2nd District of Sorsogon for the three-storey Legislative Building at the Municipal Compound, Perlas, Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Honorable Manuel "Wowo" Fortes. Jr., 2nd District of Sorsogon, House of Representatives, Batasan Hills, Quezon City; copy furnished all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

10.6.5 Resolution No. 173-2025: A RESOLUTION EXPRESSING HEARTFELT THANKS AND PROFOUND GRATITUDE TO HONORABLE GOVERNOR JOSE EDWIN "BOBOY" HAMOR FOR THE VARIOUS PROJECTS INSTALLED / CONSTRUCTED AND PROGRAMS IMPLEMENTED SPECIFICALLY UNDER THE 7K AND 7K PLUS IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON.

WHEREAS, the Local Government Unit of Prieto Diaz has been very supportive of the 7K program (*Kalinigan, Kagandahan, Kabuhayan, Kadunungan, Katrangkiluhan,*

Kalusugan, Kalikasan) including the 7K Plus program of the Provincial Government of Sorsogon;

WHEREAS, the municipality of Prieto Diaz has seen the benefits this program to the people and community, such as, but not limited to, regular (perpetual) cleaning, maintenance and improvement of streets and major thoroughfares; strengthening the tourism industry by improving further all existing tourism destination in the municipality; provision of free school uniform and supplies; distribution of farm tools, equipment and machinery; distribution of motorcycle tires to tricycle drivers; strengthening the campaign on crime prevention through the provision of auxiliary unit and law enforcers' visibility and provision of solar street lights;

WHEREAS, the municipality of Prieto Diaz is truly grateful for all these initiatives and innovations delivered by the Provincial Government to our people;

WHEREAS, on motion of Hon. Alexander Destura, duly seconded by Hon. Jo Madel Domalaon and Hon. Juan Ebid;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to express heartfelt thanks and profound gratitude to Honorable Governor Jose Edwin "Boboy" Hamor for the various projects installed / constructed and programs implemented specifically under the 7k and 7k Plus in the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Honorable Governor Jose Edwin "Boboy" Hamor, Office of the Governor, Capital Compound, Sorsogon City; copy furnished all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

10.7 Endorsement from the Mayor: Deed of Donation with Smart Communications, Inc.

A resolution was enacted, introduced by the council entitled: A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO DOMASIAN, TO ENTER INTO A DEED OF DONATION WITH SMART COMMUNICATIONS, INC., REPRESENTED BY ITS CENTER HEAD, STEPHANIE V. ORLINO, FOR THE DONATION OF TWO (2) UNITS DESKTOPS AND ONE (1) UNIT LAPTOP TO THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON.

WHEREAS, the Sangguniang Bayan is in receipt of the Deed of Donation duly endorsed by the Municipal Mayor, Hon. Romeo Domasian;

WHEREAS, the Donor, Smart Communications, Inc. is a telecommunications company duly enfranchised to render telecommunication services, both domestic and international;

WHEREAS, the Donee, the MLGU of Prieto Diaz, informed the Donor that it needs computers to enable the Local Government Unit to automate their business permitting and licensing system or set up an electronic Business One-Stop Shop (eBOSS), pursuant to Section 11 (c) of Republic Act No. 11032, or the "Ease of Doing Business and Efficient Government Service Delivery Act of 2018";

WHEREAS, Smart Communications is the owner of two (2) units desktop and one (1) unit laptop, and in its desire to aid the MLGU in the achievement of its goals, more particularly, to support the said project, Smart Communication hereby gives, transfers, and conveys the abovementioned Computers, by way of donation, to the MLGU of Prieto Diaz;

WHEREAS, the Local Government Unit of Prieto Diaz is truly grateful for the generosity of Smart Communications;

WHEREAS, on motion of Hon. Alexander Destura, duly seconded by Hon. Jo Madel Domalaon and Hon. Juan Ebid;

NOW, THEREFORE, be it as it is;

FINALLY RESOLVED, to transmit this resolution to Hon. Romeo Domasian, Municipal Mayor, copy furnished Ms. Gemma Ferrer, Municipal Treasurer; all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

The resolution was docketed as Resolution No. 174-2025.

10.8 The Chair reminded the body of the DILG NEO Seminar on September 23-25, 2025 in Sorsogon City and the members are encouraged to register online, which may be done through the Secretariat.

10.9 This time, the Chair instructed the Secretary to make an inquiry to the MPDC and the Office of the Mayor regarding the update of the long-delayed Comprehensive Land Use Plan (CLUP) and the Comprehensive Development Plan (CDP) Plus.

11 – ADJOURNMENT

Having no other matters to be taken up, and upon motion of Hon. Alexander Destura, duly seconded by Hon. Vicente Bayoca, the session was adjourned at 11:22 in the morning.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.

BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:

Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer

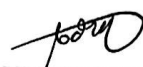
APPROVED:



Hon. RYAND D. DIÑO
Sangguniang Bayan Member



Hon. VICENTE B. BAYOCA
Sangguniang Bayan Member



Hon. BIENVENIDO D. AYO, JR.
Sangguniang Bayan Member



Hon. JOSEPH H. YAP, JR.
Sangguniang Bayan Member



Hon. ALEXANDER D. DESTURA
Sangguniang Bayan Member



Hon. JO MADEL D. DOMALAON
Sangguniang Bayan Member



Hon. JUAN D. EBID
Sangguniang Bayan Member



Hon. LILIA B. OLIVERES
Sangguniang Bayan Member



Hon. ANTONIO J. EMANO, JR.
LnB PRES./S. B. Member



Hon. RENE JOSEPH D. DOMASIAN
SKMF PRES./S. B. Member